

CITY COUNCIL

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Daniel R. Diodati
Devan Ferreira
Ralph T. Basiliere



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CITY OF HAVERHILL

HAVERHILL, MASSACHUSETTS 01830-5843

MINUTES/SUMMARY OF THE PLANNING AND DEVELOPMENT COMMITTEE MEETING

August 24, 2026

A Planning and Development Committee Meeting was held on Monday, August 24, 2026 at 6:00 PM in the City Council Chambers, Room 202

Committee Members Present: Committee Chair, John Michitson, Councilor Melissa Lewandowski, Councilor Devan Ferreira and Councilor Daniel Diodati

Committee Members Absent: Councilor Catherine Rogers

Councilors Present: Councilor LePage

City Officials: Mayor Melinda Barrett, Robert Moore, Conservation Department, Jacki Byerley, Planning Director, City Solicitor Lisa Mead, Fire Chief Chris Cesati

The following items were discussed:

- Doc. 21-B Motion by Councilor Sullivan to send for further discussion Chapter 255-Zoning Ordinance and Zoning Map – Battery Energy Storage Systems Overlay District (BESS) (review the objective site comparison before selecting a battery energy system overlay to understand how each candidate area performs from the perspective of public safety, environmental protections, infrastructure capacity, emergency response, water resources, surrounding land usage and municipal operations)

Planning Director Jacki Byerley presented maps and departmental reviews of potential Battery Energy Storage System (BESS) zoning areas, including Computer Drive, Hilldale Avenue, Neck Road, Groveland Road, Amesbury Road, and Cross Road. She explained that departments applied the evaluation criteria differently based on their operational needs, so the scores were not directly comparable. Conservation favored Hilldale Avenue, while Engineering and Water/Wastewater favored Computer Drive, followed by Hilldale Avenue and Neck Road. Planning identified Amesbury Road as the strongest option among the business districts, and the Fire Department supported Amesbury Road for zoning purposes. Councilor Ferreira and City Solicitor Lisa Mead discussed whether clean energy projects could instead be addressed through special permit requirements, with City Solicitor Mead explaining that a zoning framework would provide the Council greater control over where projects are located. Councilor Lewandowski discussed the favorable characteristics of Hilldale Avenue, while Fire Chief Cesati noted concerns regarding site size, water flow, and access requirements. Chief Cesati stated that larger parcels would help avoid stacking and that all sites would require adequate fire access and water availability. Resident Christine Kwitchoff (14 Colby's Lane) clarified the minimum lot sizes for the three BESS tiers, and Conservation Agent Robert

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also raised environmental and water-supply concerns regarding Amesbury Road, including Blanding's turtle habitat, wetlands, and its proximity to Kenoza Lake and the Millvale Reservoir. Councilor Diodati expressed concerns about locating the district at the airport and the Groveland Road site due to new fields, while Councilor Lewandowski discussed the possibility of including the tractor-trailer facility with Hilldale Avenue to meet the 20-acre requirement.

Corey O'Neill (Haverhill resident) questioned whether October 1 is a deadline for the City to establish a BESS overlay district. City Solicitor Lisa Mead clarified that the City is not required to create an overlay, but without zoning in place, BESS facilities could potentially be proposed anywhere in the City. Corey O'Neill stated that he believed additional time was needed to review the proposed locations, departmental assessments. He expressed concern about rushing the decision and raised questions regarding potential agreements between companies and City officials. Corey O'Neill stated that he is not opposed to BESS technology but wants the City to find a balance that protects residents and the community.

Christine Kwitchoff, 14 Colby's Lane, thanked the City departments for conducting the additional site reviews. She stated that it was a significant oversight at the May 19 meeting to present only one potential site and expressed appreciation for the opportunity for further public review.

Anita Toscano, Corliss Hill Road, asked about the potential impacts of BESS facilities on the City's natural resources. She raised concerns regarding the amount of water that may be needed to address a battery fire and the potential environmental impacts and cleanup requirements in the event of a battery leak.

City Solicitor Lisa Mead explained that BESS facilities do not require water for normal operations, but water is needed for emergency fire response, and the zoning ordinance requires an impervious catchment area beneath the facility. Fire Chief Cesati stated that battery fires require significant amounts of water to cool the batteries and prevent the fire from spreading, noting that a runaway battery must ultimately discharge its energy. Councilor Ferreira expressed support for the Hilldale Avenue site and suggested reducing the minimum acreage from 20 to 15 acres. She also asked about potential host agreements or PILOT payments. City Solicitor Mead explained that such agreements could be pursued but could not be made a special permit requirement. Councilor Lewandowski asked about additional Fire Department training and equipment, and Chief Cesati stated that some equipment would need upgrading, training would be required and funded by the developer, and the department would meet applicable NFPA standards. Councilor Diodati discussed including the tractor-trailer facility with the Hilldale Avenue site to maintain the 20-acre requirement. City Solicitor Mead confirmed that the City Council's role is to ensure the use is permitted somewhere, not to determine whether a specific amount of available acreage exists. Chair Michitson stated that the committee could move forward with one site, recommend multiple sites, or seek additional information before making a decision.

Motion by Councilor Lewandowski to propose Hilldale Avenue as the recommended site for the district.

Second by Councilor Diodati

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Jacki Byerley stated would you want a change made to the regulations requiring it to be 15 acres or do you want us to work on adding it so the total acreage of the area is 20 or more. Councilor Diodati stated I would like to see 20 acres. Jacki stated I will work with our GIS department. Chair Michitson stated that is part of the motion. Councilor Lewandowski stated sure.

Motion by Councilor Lewandowski to propose Hilledale Avenue as the recommended site for the district. The total acreage of the area will be 20 acres. Second by Councilor Diodati.

PASSED

4 YEAS, 0 NAYS

City Solicitor Mead stated when you do bring it up, we will have to readvertise so the sooner you bring it up the better. It's a 21-day advertisement period.

Motion by Councilor Diodati to adjourn. Second by Councilor Lewandowski.

PASSED

4 YEAS, 0 NAYS

Respectfully submitted,

John A. Michitson

John A. Michitson

Chairperson